

U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others

Allahabad High Court (Lucknow Bench) · Single Judge · 31 October 2025 · Writ - C No. 1003599 of 2008 · **Writ petition allowed; Ombudsman order dated 23.05.2008 set aside in terms of the Coordinate Bench orders dated 21.03.2023 in Writ-C Nos. 1003603, 1003604 and 1003605 of 2008**

HEADNOTE

The Electricity Ombudsman cannot relieve a consumer of minimum monthly/fixed charges on the footing that no energy was consumed for reasons beyond the consumer's control. Paragraphs 3.8 and 3.9 of the U.P. Electricity Supply Code, 2005, read with the Tariff Order and Section 24 of the U.P. Electricity Reforms Act, 1999, make those charges a Commission-notified tariff component binding on the licensee; the licensee cannot waive them on a consumer's request, and the Ombudsman cannot direct the licensee to ignore the Tariff Order or to act contrary to the Electricity Act, 2003 and the Code. A consumer prevented from using supply (here, a saw mill suspended under a Supreme Court order communicated by the Divisional Forest Officer) must seek permanent disconnection; failing that, minimum monthly charges remain payable. Following a Coordinate Bench that set aside the same-dated Ombudsman order of 23.05.2008 in Writ-C Nos. 1003603, 1003604 and 1003605 of 2008 (21.03.2023), and applying *Narinder Chand Hem Raj* (AIR 1971 SC 2399), this licensee's petition is allowed and the Ombudsman order is set aside.

FACTUAL SUMMARY

U.P. Power Corporation Ltd., through the Executive Engineer, challenged before the Lucknow Bench in Writ-C No. 1003599 of 2008 an order of the Electricity Ombudsman dated 23 May 2008. Counsel for the Corporation submitted that the same order had already been the subject of Writ-C Nos. 1003603, 1003604 and 1003605 of 2008, all allowed by a Coordinate Bench on 21 March 2023, and that the Ombudsman cannot issue directions contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. Counsel for the Ombudsman did not dispute those facts.

The Coordinate Bench reasoning adopted here concerned minimum monthly/fixed charges. The Ombudsman had allowed an appeal on the logic that, just as the licensee need not compensate for interruption beyond its control, a consumer need not pay charges when no energy is consumed for reasons beyond his control — there, a saw mill suspended under a Supreme Court order communicated by the Divisional Forest Officer — without the consumer having sought permanent disconnection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.8

Minimum monthly/fixed charges cannot be waived; consumer who does not seek permanent disconnection remains liable

QUESTION

May the Electricity Ombudsman relieve a consumer of minimum monthly/fixed charges because no energy was consumed for reasons beyond the consumer's control, without the consumer having sought permanent disconnection?

HOLDING

No. Adopting the Coordinate Bench in Writ-C No. 1003603 of 2008 (paras 12–16), the Court held that the Ombudsman's logic — that a consumer need not pay charges if no electricity is consumed for reasons beyond his control, mirroring the licensee's freedom from compensation for interruption beyond its control — is beyond the Electricity Act, 2003 and the Supply Code, 2005. Paragraphs 3.8 and 3.9, with the Tariff Orders, provide that minimum monthly/fixed charges are announced by the Commission; the licensee may decide other charges mentioned in paragraph 3.8, and may realise charges not in the Tariff Orders only with the Commission's prior approval. The published tariff schedule is to be paid. If the consumer (the saw-mill operator in the sister writ) was prevented from running the mill, the remedy was to approach the Executive

Engineer for permanent disconnection. He did not. Minimum monthly charges therefore had to be paid. Because those charges are part of the notified Tariff Order, the licensee could not waive them on a consumer request, and the Ombudsman could not ask the licensee to ignore the Tariff Order. The Ombudsman order dated 23.05.2008 is set aside, and this petition is allowed in terms of the 21.03.2023 orders. ¶ 3-8

QUALIFIER

This Court did not independently parse the text of paragraphs 3.8 and 3.9; it adopted the Coordinate Bench construction. The saw-mill/DFO facts are those recited in the quoted sister writ, not independently found on this docket.

FLAG Source PDF page 1 is an 8.4.2022 listing order (Shree Prakash Singh, J.). The operative disposal is 31.10.2025 (Jaspreet Singh, J.). The Coordinate Bench also said the Ombudsman ought first to have asked whether he could entertain the appeal without a CGRF order; this Court made no finding on that for this file. Catalog false-positives (EA1999(UP)::24-tariff-fact-forum; s135-1A-24-hour-FIR-is-mandatory) are not used.

INTERPLAY · EA1999(UP)::24

Commission-notified tariff (including minimum monthly/fixed charges) binds the licensee; Ombudsman cannot direct contrary to the Act and Code

QUESTION

Can the Electricity Ombudsman direct a distribution licensee not to recover Commission-notified minimum monthly/fixed charges?

HOLDING

No. Minimum monthly/fixed charges are announced by the Commission in accordance with Section 24 of the U.P. Electricity Reforms Act, 1999, consistent with the Electricity Act, 2003. A Tariff Order so notified is binding on the licensee. The licensee cannot waive it on a consumer's request, and the consumer's remedy against the Tariff Order is before the appropriate forum. Following Narinder Chand Hem Raj (AIR 1971 SC 2399), no direction can be issued against the provisions of the Act and the Code. The impugned Ombudsman orders contained no consideration of the Tariff Order or of the Act or the Code. ¶ 6-8

PRINCIPLE TAGS

licensee-cannot-alter-commission-determined-tariff Minimum monthly/fixed charges form part of the Commission-notified Tariff Order under Section 24 of the Reforms Act, 1999 and paragraphs 3.8/3.9 of the Code. The licensee cannot waive them on a consumer request, and the Ombudsman cannot direct the licensee to ignore the Tariff Order. Lead authorities: *U.P. Power Corporation Ltd. v. Ombudsmen and 2 others* (Writ-C No. 1003603 of 2008, 21.03.2023). ¶ 6-8

ombudsman-cannot-direct-contrary-to-act-and-code An Electricity Ombudsman award that waives tariff charges, or otherwise directs the licensee to act against the Electricity Act, 2003 and the Supply Code, 2005, is without authority and is set aside. Applied via Narinder Chand Hem Raj; no direction against the provisions of the Act and the Code. Lead authorities: *Narinder Chand Hem Raj v. Lt. Governor, Himachal Pradesh, U.P. Power Corporation Ltd. v. Ombudsmen and 2 others* (Writ-C No. 1003603 of 2008, 21.03.2023). ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OMBUDSMAN HAD JURISDICTION TO ENTERTAIN THE APPEAL WITHOUT A CGRF ORDER
The quoted Coordinate Bench said the Ombudsman ought first to have satisfied himself on that point. This Court made no finding on it for this docket. ¶ 6

NOT DECIDED — FACTS PARTICULAR TO THIS CONSUMER (SAW MILL, SUPREME COURT/DFO SUSPENSION, WHETHER PERMANENT DISCONNECTION WAS SOUGHT) AND THE QUANTUM OF MINIMUM MONTHLY CHARGES
Adopted from the sister writ as the same question; no independent fact-finding on this file. ¶ 3-8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
U.P. Power Corporation Ltd. v.	Ombudsman order dated 23.05.2008 set aside; minimum	Quoted at paras 12–16 and followed; this petition allowed	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ombudsmen and 2 others</i> Writ-C No. 1003603 of 2008, decided 21.03.2023 Allahabad High Court	monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	in terms of that order.		
<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008)</i> Writ-C No. 1003604 of 2008, decided 21.03.2023 Allahabad High Court	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.	Court	Followed
<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003605 of 2008)</i> Writ-C No. 1003605 of 2008, decided 21.03.2023 Allahabad High Court	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	This petition allowed in terms of that order; not separately quoted.	Court	Followed
<i>Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh</i> 1971 AIR 2399 Supreme Court	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	Applied via the adopted Coordinate Bench holding (para 15 of Writ-C No. 1003603 of 2008).	Court	Applied

SCJ-491 · U.P. Power Corp. Ltd. Through Executive Engineer v. Ombudsmen and 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.